

Maximum weekly working hours

1. Overview

You cannot work more than 48 hours a week on average - normally [averaged over 17 weeks \(/maximum-weekly-working-hours/calculating-your-working-hours\)](/maximum-weekly-working-hours/calculating-your-working-hours). This law is sometimes called the 'working time directive' or 'working time regulations'.

You can choose to work more by [opting out \(/maximum-weekly-working-hours/weekly-maximum-working-hours-and-opting-out\)](/maximum-weekly-working-hours/weekly-maximum-working-hours-and-opting-out) of the 48-hour week.

If you're under 18, you cannot work more than 8 hours a day or 40 hours a week.

Exceptions

You may have to work more than 48 hours a week on average if you work in a job:

- where 24-hour staffing is required
- in the armed forces, emergency services or police
- in security and surveillance
- as a domestic servant in a private household
- as a seafarer, sea-fisherman or worker on vessels on inland waterways
- where working time is not measured and you're in control, for example you're a managing executive with control over your decisions

Contact the [Advisory, Conciliation and Arbitration Service \(Acas\) helpline \(/pay-and-work-rights\)](/pay-and-work-rights) to get further advice on working hours.

What employers must do

Your employer needs to keep some records about working hours. [Visit the Acas website \(https://www.acas.org.uk/working-time-rules\)](https://www.acas.org.uk/working-time-rules) for information about the records they need to keep.

2. Calculating your working hours

Average working hours are calculated over a 'reference' period, normally 17 weeks.

This means you can work more than 48 hours one week, as long as the average over 17 weeks is less than 48 hours a week.

The 17 week period can be extended to a maximum of 52 weeks if this is agreed, for example, by a trade union. You need to calculate the average for the number of weeks in the agreement.

Your working hours cannot be averaged out if you're under 18. You cannot work more than 40 hours in any one week.

Exceptions

Some jobs have different reference periods, for example:

- trainee doctors have a 26-week reference period
- the offshore oil and gas sector has a 52-week reference period

What counts as work

A working week includes:

- job-related training
- time spent travelling if you travel as part of your job, for example sales rep
- working lunches, for example business lunches
- time spent working abroad
- paid overtime
- unpaid overtime you're asked to do
- time spent on call at the workplace
- any time that is treated as 'working time' under a contract
- travel between home and work at the start and end of the working day (if you do not have a fixed place of work)

What does not count as work

A working week does not include:

- time you spend on call away from the workplace
- breaks when no work is done, for example lunch breaks
- travelling outside of normal working hours
- unpaid overtime you've volunteered for, for example staying late to finish something off
- paid or unpaid holiday
- travel to and from work (if you have a fixed place of work)

You have more than one job

Your combined working hours should not be more than 48 hours a week on average.

If you work more than 48 hours on average, you can either:

- sign an [opt-out agreement \(/maximum-weekly-working-hours/weekly-maximum-working-hours-and-opting-out\)](#)
- reduce your hours to meet the 48-hour limit

3. Opting out of the 48 hour week

You can choose to work more than 48 hours a week on average if you're over 18. This is called 'opting out'.

Your employer can ask you to opt out, but you cannot be sacked or treated unfairly for refusing.

You can opt out for a certain period or indefinitely. It must be voluntary and in writing.

Your employer must keep a record that you've opted out.

Example of opt-out agreement:

I [worker's name] agree that I may work for more than an average of 48 hours a week. If I change my mind, I will give my employer [amount of time - up to 3 months'] notice in writing to end this agreement.

Signed.....

Dated.....

Workers who cannot opt out

You cannot opt-out of the 48 hour week if you're:

- airline staff
- a worker on ships or boats
- a worker in the road transport industry, for example delivery drivers (except for drivers of vehicles under 3.5 tonnes using [GB Domestic drivers' hours rules \(/drivers-hours/gb-domestic-rules/\)](/drivers-hours/gb-domestic-rules/))
- other staff who travel in and operate vehicles covered by [EU rules on drivers' hours \(/drivers-hours/eu-rules/\)](/drivers-hours/eu-rules/), for example bus conductors
- a security guard on a vehicle carrying high-value goods

Cancelling an opt-out agreement

You can cancel your opt-out agreement whenever you want - even if it's part of your employment contract.

You must give your employer at least 7 days' notice. You may have to give your employer up to 3 months' notice depending on what's in your agreement.

Your employer cannot force you to cancel your opt-out agreement.



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